

23TRCV04305 23TRCV04305

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-31

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Case Number: 23TRCV04305 Hearing Date: July 31, 2026 Dept: B

Moving Parties: Plaintiff Jasmine Farmer

Responding

Party: Defendant City of Los Angeles

Motion to Compel

Depositions of Defendant City's Employees

The Court considered the moving, opposition, and reply papers.

RULING

The

motion is GRANTED. See order below.

BACKGROUND

On December

28, 2023, Jasmine Farmer filed a complaint against defendant City of Los Angeles for dangerous condition of public property.

On

July 25, 2024, plaintiff filed an amendment designating Delta Air Lines, Inc. as Doe 1.

On

February 25, 2025, plaintiff filed an amendment designating Hensel Phelps

Parent 1 Inc. as Doe 2.

On May

19, 2025, Hensel Phelps Construction Co. filed a cross-complaint against Roes 1 through 100 for implied indemnity, contribution, and declaratory relief.

On

July 22, 2026, the Court granted plaintiff's motion to compel further responses to request for production of documents, set two by July 31 and awarded sanctions in favor of plaintiff.

LEGAL

AUTHORITY

CCP

§2025.450(a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice."

CCP

§2025.450(b) provides, "A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

DISCUSSION

Plaintiff

Jasmine Farmer requests an order compelling the depositions of defendant City of Los Angeles aka City of Los Angeles, Department of Airports, aka Los Angeles World Airports' employees for dates in July or August 2026.

The

complaint alleges that this lawsuit arises from an incident that took place on April 11, 2023 at approximately 4:20 a.m., at the LAX Airport. Complaint, ¶10. The City of Los Angeles owned, occupied, leased, used, regulated, controlled, managed, maintained, operated, supervised, repaired, and possessed the roof and ceiling at the LAX Airport. Id., ¶11.

At the time of the incident, plaintiff was working as a TSA agent. On that day, she was tasked with checking in employees at the Known Crew Member podium in terminal 3. Id., ¶12.

While performing this task, plaintiff was at a podium inside the airport. Id., ¶13. Above the podium is ceiling tiles. Id., ¶14. While plaintiff was checking in airline staff, a wet ceiling tile fell from the ceiling and struck her in the head. As a result, she suffered severe and permanent injury, including a traumatic brain injury.

Id., ¶15.

Plaintiff

explains that on April 2, 2026, plaintiff's counsel reached out to defense counsel to provide "advance notice" of plaintiff's intent to notice the deposition of LAWA's PMQ on eleven areas of inquiry and that the depositions of five LAWA employees would be noticed for dates in May and requested that defense counsel provide witness availability by April 23. On April 27, having received no availability, plaintiff unilaterally noticed the depositions of five LAWA employees—Christopher Mendoza, Brian Velasquez, Diana Duker for May 28 and Talitha Mitchell and Robert Zamora for May 29.

On May 1, plaintiff served the notice of deposition of LAWA's PMQ for May 29 along with a request for production of documents. On May 5, defense counsel requested a two-week extension to respond to plaintiff's requests for production of documents, set two, but did not provide witness availability.

Plaintiff's counsel granted a one-week extension to May 12 and expected that defense counsel would also address the outstanding deposition availability. On May 11, defense counsel requested another week extension and stated that they were also working to obtain deposition dates for the LAWA employee witnesses as well. Plaintiff's counsel granted an extension to May 19. On May 19, defense counsel requested an additional two-week extension, "citing ongoing delays in receiving

responsive documents and information from LAWA.” Defense counsel indicated that they would provide LAWA’s employees’ availability for deposition before the end of May. Plaintiff’s counsel granted an extension to May 26. On May 26, defense counsel requested another extension and did not provide any deposition availability. Plaintiff’s counsel responded, granting one final extension and requiring that both the outstanding discovery responses and deposition availability for all six noticed LAWA witnesses be provided no later than June 2. Plaintiff’s counsel took the depositions off calendar in reliance on defense counsel’s representations, rather than proceed to certificates of non-appearance. On June 2, defense counsel contacted plaintiff’s counsel by phone and advised that they were still working to obtain both discovery responses and deposition dates from LAWA and required additional time. Plaintiff’s counsel declined to grant a further extension. As of the filing date of the motion on June 10, plaintiff’s counsel had not received LAWA’s employees and PMQ availability.

In opposition, LAWA contends that it has never refused to produce its employee witnesses or its PMQ for deposition. Rather, defendant asserts, defense counsel has consistently advised plaintiff’s counsel that it was working with its client to obtain the availability of the requested witnesses before confirming deposition dates. Defendant states that it acknowledges that the process has taken longer than anticipated but the delay is neither willful nor undertaken for the purpose of delay. Defendant asserts that defense counsel “continues to work with its client to obtain their availability.”

In the reply (filed on July 20), plaintiff notes that defense counsel still has not provided any available deposition dates. Plaintiff asserts that “an open-ended commitment to produce witnesses at some unspecified future date, unaccompanied by any date, is precisely the conduct that required Plaintiff to seek relief.”

The Court finds that plaintiff properly served deposition notices for May 28 and May 29. Plaintiff’s counsel reasonably took the depositions off calendar on defense counsel’s numerous representations that they would provide availability, which they have not done.

The
motion is GRANTED.

Sanctions

Plaintiff
requests \$3272.50 (\$595/hr. x 5.5 hrs.) in sanctions against defendant LAWA. The Court finds that sanctions are warranted against defendant in the amount of \$1785 (\$595/hr. x 3 hrs.).

ORDER

The motion is GRANTED.

Defendant LAWA is ordered to produce for deposition its
PMQ and employees as previously noticed by August 21.

Defendant LAWA is ordered to pay sanctions to plaintiff
in the amount of \$1785 within thirty days.

Plaintiff is ordered to give notice of ruling.